

FEDERAL-FOCUSED GUIDE

Harassment • Stalking • Cyberstalking • Protection Orders • Civil/Criminal Escalation • Recording & Evidence

Scope: This guide reorganizes the entire discussion around federal law and broadly applicable federal principles rather than treating any one state's law as the primary framework. It is educational information, not legal advice. State, tribal, territorial, municipal, and federal law can overlap; for recording private conversations especially, state law may be stricter than federal law.

Current-law note: Federal statutes and case law can change. The federal statutory provisions discussed here should be checked against the current U.S. Code and applicable federal circuit law before filing anything.

1. THE FEDERAL LEGAL ARCHITECTURE

There is no single federal civil lawsuit called “harassment.” Federal law instead reaches particular conduct through specific statutes, constitutional protections, federal jurisdiction rules, and criminal offenses. A fact pattern may implicate more than one body of law.

Core federal stalking statute: 18 U.S.C. § 2261A. It has two principal routes: (1) interstate/foreign travel or presence in specified federal jurisdictions with the required intent and resulting fear or substantial emotional distress; and (2) use of the mail, an interactive computer service, an electronic communication service/system of interstate commerce, or another facility of interstate/foreign commerce with the required intent and course of conduct. ■cite■turn1search1■

Federal protection-order interstate enforcement: 18 U.S.C. § 2265 requires qualifying protection orders issued by state, tribal, or territorial courts to receive full faith and credit elsewhere when statutory jurisdiction and due-process requirements are satisfied. This is a federal interstate-enforcement rule, not generally a federal court issuing an ordinary nationwide restraining order in the first instance. ■cite■turn1search0■

Federal civil jurisdiction: 28 U.S.C. § 1331 gives federal district courts original jurisdiction over civil actions arising under the Constitution, laws, or treaties of the United States. A federal case therefore normally needs a federal cause of action or another recognized basis for federal jurisdiction. ■cite■turn1search3■

Venue: 28 U.S.C. § 1391 generally permits federal civil actions in a district where a defendant resides (subject to the statute's conditions), where a substantial part of the events/omissions occurred, or, in specified circumstances, where a defendant is subject to personal jurisdiction. ■cite■turn1search2■

2. FEDERAL STALKING & CYBERSTALKING

18 U.S.C. § 2261A(1): interstate/foreign-travel stalking. The statute addresses a person who travels in interstate or foreign commerce (or is present in specified federal/Indian-country jurisdiction) with intent to kill, injure, harass, intimidate, or place someone under surveillance with that intent, and who engages in conduct that produces the statutory fear or substantial-emotional-distress result. The statute includes protection for the target, certain immediate family members, spouses/intimate partners, and specified animals in the reasonable-fear provision. ■cite■turn1search1■

18 U.S.C. § 2261A(2): federal cyberstalking. The statute covers use of the mail, an interactive computer service, electronic communication service/system of interstate commerce, or another facility of interstate/foreign commerce, with the specified intent, to engage in a course of conduct producing the statutory reasonable-fear or substantial-emotional-distress result. ■cite■turn1search1■

Course of conduct matters. DOJ's Federal Law and Practice discussion explains that a single communication is not sufficient under the federal cyberstalking statute; the statute requires a course of conduct. ■cite■turn1search45■

Federal prosecution is not automatic. The existence of conduct fitting a statutory description does not itself mean a federal case will be opened. Federal criminal enforcement is ordinarily investigated by federal law enforcement and prosecuted by a U.S. Attorney's Office or other authorized federal prosecutor. DOJ examples show federal stalking/cyberstalking prosecutions involving interstate travel, repeated communications, social-media activity, threats, and other conduct. ■cite■turn1search4■turn1search5■turn1search7■

3. WHAT EVIDENCE PROVES A FEDERAL STALKING/ CYBERSTALKING CASE?

Think in elements rather than labels. Build evidence for: **identity/attribution; jurisdictional interstate or federal connection; intent; course of conduct; the acts themselves; resulting reasonable fear or substantial emotional distress; and chronology.**

Element	Evidence that can help establish it
Identity / attribution	Messages, account identifiers, phone/email records, witnesses, platform records, admissions, device/account evidence, business records.

Interstate/federal nexus	Travel records, messages across state lines, interstate electronic services, location evidence, relevant account/provider records, federal-jurisdiction facts.
Intent	Words, repeated conduct, threats, planning, prior warnings, surrounding circumstances, admissions; intent is ordinarily inferred from evidence rather than proved by a single sentence.
Course of conduct	Chronological incident log, complete message threads, repeated visits/following, repeated account activity, multiple witnesses, videos.
Result	Contemporaneous documentation, messages to trusted people, changes in routine, workplace/security records, medical/counseling records when relevant, concrete fear/distress facts.
Authentication	Original files, metadata where available, device preservation, platform exports, witnesses who saw/received the material, provider records.

Do not rely only on screenshots. Preserve original messages, complete threads, URLs/usernames, timestamps, emails with headers where available, platform reports, call logs, voicemails, original video/audio files, and the devices or accounts from which the evidence came.

4. HARASSMENT: FEDERAL VIEW

Federal law uses harassment in particular statutory contexts; it is not a universal federal civil cause of action. Under §2261A, “harass” is part of the required intent and the statute separately requires a qualifying course of conduct and specified fear or substantial-emotional-distress result. Therefore, the practical federal question is not simply “Was I harassed?” but “Which federal statute applies, what jurisdictional hook exists, and can each statutory element be proven?”

A business does not become federally liable merely because an employee or customer describes conduct as harassment. The legal theory has to be identified. Depending on facts, potential federal avenues can include a specific federal criminal statute, a federal civil-rights statute, an employment statute, a communications/privacy statute, intellectual-property law, consumer law, or another federal cause of action. Many ordinary harassment/tort claims remain matters of state law unless a federal statute or federal jurisdictional basis applies.

Business + individual: Separate the acts of the individual from the acts attributable to the organization. Preserve company emails, employee communications, policies, customer-service records, surveillance, transaction records, and any evidence showing who authorized or performed the conduct. Do not assume corporate liability; it depends on the particular federal statute and its elements.

5. PROTECTION ORDERS: WHAT IS FEDERAL AND WHAT IS NOT

Most ordinary personal protection/restraining orders are issued under state, tribal, or territorial law rather than through a general federal stalking-injunction procedure. Federal law is nevertheless important because 18 U.S.C. §2265 provides interstate full faith and credit for qualifying protection orders. ■cite■turn1search0■

That means a protection order issued by a state, tribal, or territorial court can have enforcement effect elsewhere if it satisfies the federal statute's requirements. The order must be issued by a court with jurisdiction and provide the respondent reasonable notice and opportunity to be heard; special rules apply to ex parte orders. ■cite■turn1search0■

A separate federal criminal statute, 18 U.S.C. §2262, addresses interstate travel or travel in certain federal/Indian-country jurisdictions with intent to violate a qualifying protection order. DOJ describes this as a federal crime. ■cite■turn1search6■

Practical distinction: “I want a restraining order” and “I want federal prosecution” are two different legal tracks. A protection order is generally obtained through the jurisdiction authorized to issue it; federal law can govern interstate recognition/enforcement and can criminalize certain interstate violations.

6. WHEN CONDUCT ESCALATES BEYOND A PROTECTION ORDER

There is no single federal “escalation point.” Different legal tracks can arise at the same time:

1. **Protection track:** petition for an available protection order in the appropriate jurisdiction; preserve evidence for the hearing; enforce violations.

2. **Criminal track:** report potentially criminal conduct to the appropriate law-enforcement agency. If federal jurisdiction exists, the FBI or another federal agency may investigate and a U.S. Attorney's Office may prosecute. Federal examples show charges under §2261A for cyberstalking/stalking and, where facts support it, separate federal threat offenses.

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3. **Civil track:** a separate lawsuit requires an identifiable cause of action and a court with jurisdiction. Federal-question jurisdiction exists for claims arising under federal law; venue is governed generally by §1391 unless another statute controls.

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4. **Other federal crimes:** conduct can implicate separate federal statutes depending on facts—for example, interstate threats, unauthorized computer access, extortion, identity-related offenses, or other crimes. The correct statute depends on what actually occurred.

7. RECORDING PEOPLE & EVENTS IN PUBLIC — FEDERAL FRAMEWORK

First Amendment recording right: Federal appellate courts have recognized a First Amendment right to record police activity in public. DOJ summarizes the federal appellate consensus and specifically identifies the Eleventh Circuit's recognition of that right. The right is subject to reasonable time, place, and manner restrictions and does not create a right to interfere with police activity or trespass. ■cite■turn0search0■turn0search48■

More broadly, recording matters occurring openly in public can implicate First Amendment newsgathering/information-gathering principles, but the constitutional right is not an unlimited license to enter private property, violate privacy laws, obstruct an investigation, or secretly intercept a protected private conversation.

Federal audio interception law: 18 U.S.C. §§2510–2523 establishes a federal baseline. Federal law generally permits one-party-consent recording where a party to the communication or another person has the required consent, subject to statutory exceptions—including the important exception concerning recording for a criminal or tortious purpose. The Reporters Committee summarizes the federal rule and warns that state law can be stricter. ■cite■turn0search1■turn0search7■

Critical rule: “Federal law is one-party consent” does NOT mean “I can secretly record any conversation anywhere.” State laws can impose all-party consent requirements, and interstate calls can create conflicts. The Reporters Committee recommends erring on the side of the stricter applicable law for interstate calls. ■cite■turn0search1■turn0search9■

Public location is not the whole test. Privacy expectations depend on circumstances such as location, whether others could naturally hear, what was being discussed, and whether the communication was actually private. ■cite■turn0search1■

8. VIDEO VS. AUDIO — KEEP THESE SEPARATE

Ordinary visual recording: Filming what is openly visible from a place where you are lawfully present generally raises different issues from intercepting private audio. The strongest constitutional protection is especially clear for recording government officials performing public duties. ■cite■turn0search0■

Private audio: A microphone can trigger wiretap/eavesdropping rules even when the camera is pointed at a public scene. Before deliberately capturing private speech, determine which federal and state laws apply.

Hidden cameras: Federal law is not the entire picture. States and jurisdictions have their own hidden-camera and privacy statutes, and civil privacy claims can exist even when a recording statute does not apply. ■cite■turn0search1■

Recording yourself: You may ordinarily record yourself, but if the recording deliberately captures another person's private communication, analyze the audio/interception rules separately. A camera aimed at yourself is not a blanket exemption from laws governing other people's protected communications.

9. RECORDING AS EVIDENCE OF STALKING/HARASSMENT

For a real-world documentation system, preserve original evidence and create a separate working copy. Do not crop or overwrite the original. Record the date/time, device used, location, who was present, and how the file was obtained.

For every incident, use: **DATE → TIME → LOCATION → PERSON → EXACT CONDUCT → EVIDENCE → WITNESSES → IMMEDIATE RESULT.**

Use factual descriptions rather than conclusions. “Respondent remained outside the building for 18 minutes and entered the parking lot when I left” is more useful evidence than “Respondent aggressively stalked me.” The legal characterization is for the court/law-enforcement decisionmaker to apply to the facts.

If a business, apartment complex, store, transit system, or other third party may possess surveillance, make a prompt written preservation request identifying the date, approximate time, location, and incident. Do not assume surveillance will be retained indefinitely.

10. THE FIVE-PART EVIDENCE FILE

A. Incident chronology

One row per event. Date, time, location, person, exact conduct, witnesses, evidence, police/incident number, and concrete effect.

B. Digital evidence

Original texts, emails, DMs, posts, URLs, usernames, account IDs, platform reports, call logs, voicemails, login alerts, and exports where available.

C. Audio/video

Original files plus an index. Keep the unedited original and make annotated copies separately.

D. Witnesses

Name/contact information and what the person personally observed. Do not coach witnesses on conclusions.

E. Legal records

Police reports, incident numbers, court filings, orders, proof of service, preservation requests, platform responses, and attorney communications.

11. WHAT NOT TO DO

- Do not retaliate, threaten, follow the other person back, create fake accounts, or attempt unauthorized access to their accounts.
- Do not place trackers or recording devices on property where you have no legal right to do so.
- Do not assume a public location makes every audio recording lawful.
- Do not delete original evidence after creating screenshots or edited clips.
- Do not post an entire evidence package publicly when a court/law-enforcement submission would accomplish the purpose; publication can create separate privacy, defamation, confidentiality, or evidentiary issues.
- Do not confront a potentially dangerous person merely to obtain a better recording.

12. FEDERAL-FOCUSED CHECKLIST

- Identify the specific conduct, not merely the label “harassment.”
- Determine whether §2261A potentially applies and which subsection.
- Identify the interstate/federal-jurisdiction connection.
- Establish identity/attribution.
- Preserve the complete course of conduct.
- Document the resulting fear or substantial emotional distress factually.
- Preserve original digital files and metadata where available.
- Obtain/preserve third-party surveillance before routine deletion.
- Identify witnesses and what they personally observed.
- Separate protection-order proceedings from criminal prosecution and civil litigation.

- For recording, distinguish video from audio and public observation from private communication.
- For interstate calls/communications, check every potentially applicable jurisdiction rather than relying only on federal one-party-consent law.
- If federal prosecution may be implicated, consider contacting the FBI or the appropriate federal law-enforcement channel; a federal criminal case is controlled by federal prosecutors and evidentiary requirements.
- If considering a civil federal lawsuit, identify the exact federal cause of action and jurisdiction/venue before filing.

13. KEY FEDERAL AUTHORITIES & SOURCES

18 U.S.C. §2261A — Stalking — Federal stalking/cyberstalking statute; interstate travel and interstate electronic-communications provisions.

<https://www.law.cornell.edu/uscode/text/18/2261A>

18 U.S.C. §2265 — Full faith and credit for protection orders — Federal interstate recognition/enforcement framework for qualifying state, tribal, and territorial protection orders.

<https://www.law.cornell.edu/uscode/text/18/2265>

18 U.S.C. §§2510–2523 — Federal interception law — Federal baseline governing interception/recording of wire, oral, and electronic communications.

<https://www.law.cornell.edu/uscode/text/18/ch119>

28 U.S.C. §1331 — Federal question — Original federal jurisdiction for civil actions arising under federal law.

<https://www.law.cornell.edu/uscode/text/28/1331>

28 U.S.C. §1391 — Federal venue — General venue rules for federal civil actions.

<https://www.law.cornell.edu/uscode/text/28/1391>

DOJ — Geraci and Fields recording decision — DOJ discussion of the First Amendment right to record police activity in public.

<https://www.justice.gov/crt/case-document/geraci-and-fields-v-philadelphia-court-appeals-decision>

DOJ — Federal Law and Practice, stalking discussion — Explains federal §2261A elements and the course-of-conduct requirement.

<https://www.justice.gov/usao/page/file/1383296/dl>

Reporters Committee — Recording Guide — National overview of federal/state recording and hidden-camera rules, including interstate-call cautions.

<https://www.rcfp.org/introduction-to-reporters-recording-guide/>

Important: This document intentionally does not treat Florida or another individual state's law as the governing framework. That is useful for understanding federal jurisdiction and constitutional principles, but it does not eliminate state-law analysis. Recording law is the clearest example: federal law may provide a one-party-consent baseline while a state law is stricter.

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For an actual case: The most useful next step is an incident-by-incident legal-elements chart: each event → possible federal statute → required element → evidence proving that element → missing evidence → potential protection/criminal/civil pathway. That method keeps the analysis tied to provable facts rather than labels.